

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	NUMBER: DR 1042-126
SUBJECT: Task Force on Agricultural Air Quality Research	DATE: April 27, 2021
OPI: Natural Resources Conservation Service	EXPIRATION DATE: April 27, 2026

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1. PURPOSE

This Departmental Regulation (DR) re-establishes the USDA Task Force on Agricultural Air Quality Research (Task Force) pursuant to Section 391 of the *Federal Agriculture Improvement and Reform Act of 1996* (FAIR Act), Public Law (P.L.) 104-127, April 4, 1996, codified at [7 United States Code \(U.S.C.\) 5405](#). The FAIR Act directs the Chief of the Natural Resources Conservation Service (NRCS) to establish an advisory committee to address agricultural air quality issues.

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This revision supersedes DR 1042-126, *Task Force on Agriculture Air Quality Research*, dated April 15, 2014.
- b. This policy is effective immediately and remains in effect until it is superseded or expires.

3. BACKGROUND

The Task Force was originally established to strengthen vital research efforts related to agricultural air quality and to ensure intergovernmental cooperation in addressing research and other activities related to agricultural air quality. Congress wanted to ensure that any Federal policy recommendations that may be issued by any Federal agency to address air pollution problems related to agriculture would be based on sound scientific findings and subject to adequate peer review and take into account economic feasibility.

4. SCOPE

This DR applies to USDA Mission Areas, agencies, and staff offices responsible for agricultural air quality research, policy, and implementation.

5. POLICY

- a. The FAIR Act directs the Chief of NRCS to establish a task force to oversee and review research in agricultural air quality issues in order to ensure intergovernmental cooperation in research activities.
- b. The Task Force is responsible for advising the Secretary of Agriculture (Secretary) on air quality and its relationship to agriculture based on sound scientific findings.
- c. The Task Force will advise the Secretary on efforts to strengthen vital research efforts related to agricultural air quality and on cost-effective ways in which the agricultural industry can improve air quality.
- d. The Task Force will advise the Secretary on efforts to coordinate and ensure intergovernmental cooperation on research activities related to agricultural air quality issues to avoid duplication and ensure data quality and sound interpretation of data.
- e. NRCS will provide administrative support for the Task Force.

6. MEMBERSHIP

There are no legal limitations to the number of members who may serve on the Task Force. The Task Force membership will consist of:

- a. The Chief of NRCS as the Task Force Chair;
- b. Representatives, selected by the Secretary, of academia, agribusiness, regulatory organizations, environmental organizations, health disciplines, special government employees (SGEs), and other experts in the fields of agriculture and air quality; and

- c. USDA regular government employees (RGEs), as selected by the Secretary.

7. ROLES AND RESPONSIBILITIES

- a. The Secretary will:
 - (1) Strengthen vital research efforts related to agricultural air quality;
 - (2) Ensure, to the maximum extent practicable with respect to USDA and other Federal departments and agencies, intergovernmental cooperation in research activities related to agricultural air quality and avoid duplication of the activities;
 - (3) Ensure, to the maximum extent practicable with respect to USDA and other Federal departments and agencies, that the results of any research related to agricultural air quality conducted by Federal agencies do not report erroneous data with respect to agricultural air quality; and
 - (4) Appoint members to the Task Force.
- b. The Chief of NRCS or their designee will:
 - (1) Serve as Chair of the Task Force;
 - (2) Serve as the primary point of contact to the Secretary, and be responsible for presenting Task Force recommendations to the Secretary;
 - (3) Prepare the Task Force charter as established under section 9(c) of the *Federal Advisory Committee Act* (FACA), [P.L. 92-463](#), October 6, 1972, as amended; and
 - (4) Assign NRCS personnel to provide administrative support for the Task Force.
- c. The Designated Federal Officer (DFO) for the Task Force will:
 - (1) Approve the Task Force's meetings;
 - (2) Prepare and approve all Task Force meeting agendas;
 - (3) Attend Task Force meetings;
 - (4) Adjourn any Task Force meeting when the DFO determines adjournment to be in the public interest; and
 - (5) Chair Task Force meetings when directed to do so by the Chief of NRCS or their designee.

- d. The Task Force will develop recommendations for the Secretary as it pertains to his or her role in the oversight and coordination of issues related to agricultural air quality.
- e. Other delegated USDA staff will assist the Secretary, the Chief of NRCS, and the DFO in planning and attending meetings of the Task Force, attending meetings of subcommittees of the Task Force, and other tasks as necessary to ensure efficient operation of the Task Force.

8. INQUIRIES

Inquiries regarding this DR should be directed to the NRCS, West National Technology Support Center at 970-295-5621.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

DFO	Designated Federal Officer
DR	Departmental Regulation
FACA	Federal Advisory Committee Act
FAIR Act	Federal Agriculture Improvement and Reform Act of 1996
NRCS	Natural Resources Conservation Service
RGE	Regular Government Employee
SGE	Special Government Employee
U.S.C.	United States Code
USDA	United States Department of Agriculture

APPENDIX B

AUTHORITIES AND REFERENCES

Federal Advisory Committee Act, [P.L. 92-463](#), as amended, December 21, 1982

Federal Agriculture Improvement and Reform Act of 1996 (P.L. 104-127), [7 U.S.C. 5405](#)